

25SMCV06574 25SMCV06574

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-21

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TENTATIVE RULING

Plaintiff Anthony Jones' Motion for (1) Imposition of Equitable Lien [¶] (2) Equitable Setoff [¶] (3) Order Preserving Vehicle is DENIED.

Defendant Mercedes-Benz Financial Services USA LLC to give notice.

REASONING

Plaintiff Anthony Jones ("Plaintiff") moves the Court for an order imposing an equitable lien in favor of Plaintiff against the 2021 Mercedes-Benz G63, VIN No. WINYC7HJ3MX394177, granting an equitable setoff for Plaintiff's financial contributions toward the vehicle, and ordering that the subject vehicle not be transferred, repossessed, sold, or otherwise disposed of pending resolution of Plaintiff's equitable interest.

Put simply, the Court lacks a basis to conclude that this is a proper motion. Plaintiff cites no legal authority indicating that he may obtain the relief he requests here, i.e., a determination of fact as to his claims. The only basis for making such a determination is a motion for summary judgment or adjudication, and this motion has not been filed in that manner, nor does Plaintiff cite any of the summary judgment or adjudication authorities or follow the procedural requirements for the same. Insofar as he seeks injunctive relief, he also not fulfilled the procedural requirements for that sort of motion. Plaintiff provides only a declaration regarding his purported entitlement to the relief he seeks, the exact nature of Plaintiff's claims remains unclear at this juncture, and the case is not yet at issue, as Plaintiff has been granted leave to file an amended complaint after the Court sustained a recent demurrer, but the amended pleading has not yet been filed. Given that the Court lacks a basis to conclude that this is a proper motion, the Court cannot grant Plaintiff's request for relief. Because Plaintiff's motion fails on procedural grounds, Plaintiff Anthony Jones' Motion for (1) Imposition of Equitable Lien [¶] (2) Equitable Setoff [¶] (3) Order Preserving Vehicle is DENIED.